

Munna Kumar @ Avinash Kumar vs Ruby Kumari & Anr on 1 September, 2008

Author: Mihir Kumar Jha

Bench: Mihir Kumar Jha

IN THE HIGH COURT OF JUDICATURE AT PATNA
C.R. No.236 of 2008
MUNNA KUMAR @ AVINASH KUMAR
Versus
RUBY KUMARI & ANR

7 1/9/2008

Heard Mr Durga Nand Jha, counsel for the petitioner and Mr Bindhyachal Singh, counsel for the opposite parties.

In the opinion of this Court the impugned order does not suffer from any jurisdictional error. The impugned order, in fact, came to be passed on second attempt of the petitioner to get the earlier order directing payment of maintenance under section 24 of the Hindu Marriages Act recalled.

Mr. Durga Nand Jha, counsel for the petitioner has made two submissions, one, that in case where a person being minor claims that the marriage alleged to have been performed was itself void, he will not be liable to pay maintenance in terms of section 24 of the Hindu Marriages Act. He has further submitted that the approach of the court below directing the father of the petitioner to pay the amount of maintenance is again not sustainable because such payment has to be made in terms of section 24 of the Hindu Marriages Act only by the husband.

In the opinion of this Court, the court below has considered this aspect with complete clarity and precision. Such reasoning of the court below, in fact, seems to be absolutely correct that merely because when a person i.e. husband will come out with a defence that the marriage at the inception was void, rigours of section 24 of the Hindu Marriages Act cannot be avoided. All that section 24 of the Act requires is that there should be a proceeding under the Act and in such proceeding pending for final determination, the wife or the husband if unable to maintain, has to be supported for contesting the proceeding till conclusion of such proceeding. It cannot be doubted that when the petitioner had filed a suit for declaration of the marriage to be void it was not a proceeding under the Act. Again the petitioner cannot be heard to say that his capacity for such proceeding while seeking declaration of marriage to be void was anything else but of a husband. The plea that the petitioner will not be a valid husband as there was no valid marriage is premature and the same is yet to be decided.

In that view of the matter, applicability of section 24 of the Act for payment of maintenance pendent-elite cannot be ruled out.

Next issue raised by the counsel for the petitioner is that the father was not liable to pay the amount of maintenance is again a plea of desperation as it was the father who made a plea before the court that his son is minor, as such, he had filed a suit on behalf of minor. In fact, such case was filed purportedly in exercise of authority as a father in terms of Order 32 Rule 1 of the Code of Civil Procedure. That being so, when an order has been passed directing that the petitioner, a minor, who is pursuing his matrimonial case through his natural guardian i.e. his father, the father cannot disown the liability of paying maintenance which actually has been directed against the petitioner.

In that view of the matter, this Court does not find any merit in either of aforesaid two contentions. Accordingly, this civil revision application is fit to be dismissed and the court below is directed to ensure that the amount so directed by the impugned order is realized from the petitioner within a period of one month from the date of receipt/production of a copy of this order.

After the order was dictated, counsel for the petitioner has submitted that this Court should pass an order that the matrimonial case filed by the petitioner should be decided expeditiously on day to day basis.

Unfortunately, such is not the scope of this civil revision application which is confined only for granting maintenance under section 24 of the Hindu Marriages Act. That being so, this Court does not like to give any observation which does not lie within the narrow compass of this civil revision application. Such prayer is therefore rejected with only an observation that once the petitioner complies the directions in the impugned order, the court below would take up the hearing of the matrimonial case strictly as per its age and seniority.

With the aforementioned
observations and directions this Civil

Revision Application is dismissed.

(Mihir Kumar Jha, J.) Abhay Kumar